

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUMM026790: ASHLEY J GOCHMAN vs SIMI VALLEY HOSPITAL, et al.

08/21/2026 in Department 41

Motion to Tax Costs for Def Hossein Gharakhani and Allied Emergency

GRANT

Plaintiffs' unopposed motion for relief under Code Civ. Proc. § 473(b).

DENY

The motion to strike the May 5, 2026, Memorandum of Costs on the grounds of untimeliness or the alleged March 2026 cost-waiver agreement IS DENIED. Plaintiffs have withdrawn their challenge to the \$8,900 in expert fees. Because the Court's July 23, 2026 order subsequently set aside the March dismissal as to Jaxon and Oakley Sonsalla for the limited purpose of effectuating settlement, while expressly preserving Defendants' right to seek costs from Hazely Persky, CONTINUE the determination of the amount of costs recoverable against Hazely for limited supplemental briefing concerning allocation.

Plaintiffs' unopposed Motion for Relief Under Code Civ. Proc. § 473(b) is GRANTED. Plaintiffs have shown that their failure to timely file the motion to tax the May 5, 2026 cost memorandum resulted from an inadvertent calendaring error, that counsel discovered the error on May 26, 2026 and filed the motion the following day, and that the short delay caused no apparent prejudice.

Plaintiffs' concurrent Motion to Strike and Tax Costs is DENIED insofar as it seeks to strike Defendant Gharakhani's May 5, 2026 Memorandum of Costs as untimely. Although the memorandum was filed after the ordinary deadline imposed by California Rules of Court, rule 3.1700(a)(1), the Court expressly granted Defendants leave to file their cost memoranda in its April 29, 2026 ruling. The rule's deadline is mandatory but nonjurisdictional, and relief from noncompliance may be granted under Code Civ. Proc. § 473(b). (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426; *Russell v. Trans Pacific Group* (1993) 19 Cal.App.4th 1717, 1728-1730.)

Plaintiffs' original argument that Defendants agreed to waive all costs likewise does not warrant striking the memorandum. The Court's subsequent July 23, 2026 order governs the present posture: the prior dismissal was set aside as to Jaxon and Oakley Sonsalla solely for purposes of effectuating their settlement, and Defendants expressly reserved their right to recover costs from Hazely Persky. The Court therefore need not resolve the parties' earlier disagreement concerning the precise terms of their March 2026 communications in order to determine Defendants' present entitlement to seek costs from Persky.

Plaintiffs have withdrawn their challenge to Defendants' recovery of expert witness fees under Code Civ. Proc. § 998 after confirming that Defendants served Code Civ. Proc. § 998 offers. Accordingly, that challenge is no longer presented.

The amount presently recoverable against Persky, however, requires further consideration. The existing cost memorandum and briefing preceded the July 23 order and address costs incurred in defending the action brought jointly by all three Plaintiffs. Where costs were jointly incurred in litigation involving prevailing and nonprevailing parties, the Court must examine why each cost was incurred, whether it was reasonably necessary to the prevailing party's litigation, and its reasonableness; an across-the-board numerical allocation based simply on the number of parties is improper. (*Charton v. Harkey* (2016) 247 Cal.App.4th 730, 743-745; *Quiles v. Parent* (2018) 28 Cal.App.5th 1000, 1017-1018.)

Accordingly, determination of the amount of costs recoverable against Persky is CONTINUED to a date set by the Court. Defendant shall submit supplemental briefing and supporting evidence identifying, item by item, which claimed costs were incurred and reasonably necessary in defending against Persky's claims. Plaintiffs may respond on a schedule set by the Court.

Counsel for Defendants is to give notice of the Court's ruling.